

Data Processing Agreement according to Art. 28 GDPR

between

- Controller –

SSANCAR LTD

163, Sangidaehak-ro, Siheung-si, Gyeonggi-do, Republic of Korea

and

- Processor –

Rocketbots Limited

Unit 2406B, 24/F, Low Block, Grand Millennium Plaza, 181 Queen's Road Central, Sheung Wan, Hong Kong

acting on its own behalf and as agent for each Affiliate

Preamble

The cooperation of the Parties in accordance with the underlying order for Agreement for Services (Order Form) entails that the Processor is given the opportunity to access personal data provided by the Controller. This Agreement, together with its **Annexes**, specifies the obligations of the Parties with respect to data protection.

§ 1 Scope, Controller

- (1) This Agreement shall apply to all processing activities which are related to the performance of the Service Agreement. The Processor shall collect and process personal data on behalf of and in accordance with the instructions of the Controller. As the controller within the meaning of Art. 4 No. 7 GDPR, the Controller shall be responsible for compliance with the statutory provisions of the data protection laws, in particular for the lawfulness of the transfer of data to the Processor and for the lawfulness of the data processing.
- (2) The parties conclude this Agreement to specify their mutual rights and obligations under data protection law. In case of doubt, the provisions of this Agreement shall take precedence over the provisions of the Service Agreement insofar as they relate to data protection.

- (3) Where personal data is transferred to a third country or an international organisation where the adequacy requirement is not fulfilled (Art. 45 subs.3 GDPR) the transfer of personal data according to this agreement takes place based on standard clauses as attached in **Annex A**. Where there are inconsistencies between this agreement and the standard clauses, the standard clauses shall prevail. Should the European Commission issue new standard clauses, the parties are obliged to make these part of this agreement.

§ 2 Subject, Duration and Specification of Data Processing

The subject and duration as well as the scope and type of data collection and processing result from the service contract. At the time of conclusion of the contract, the categories of data listed in **Annex B** shall be processed by the Processor. Also, in the further course, the type and scope of data processing shall be determined by the concrete design, type and scope of the service described in the preamble, depending on instructions issued. The Controller shall be responsible for providing the Processor with the personal data of the Data Subjects in a timely manner for the performance of the Service in accordance with the Service Agreement and shall be responsible for the quality of the personal data.

§ 3 Instructions

- (1) The Processor may collect and process data within the limits of this contract and in accordance with the Controller's instructions; this applies in particular regarding the transfer of personal data to a third country or to an international organization. The Processor shall correct, delete or restrict the processing of personal data from the contractual relationship if the Controller requests this by means of an instruction and if legitimate interests of the Processor do not conflict with this. In particular, the Processor shall correct, delete or restrict the processing of personal data from the contractual relationship if the Controller's instruction is based on a legitimate claim of the data subject under Articles 16, 17 and 18 of the GDPR.
- (2) No copies or duplicates of the data will be made without the knowledge or instruction of the Controller. Excluded from this are security copies, insofar as they are necessary to ensure proper data processing, as well as data required with regard to compliance with statutory retention obligations.
- (3) The instructions are initially defined by the service contract and this contract may thereafter be amended, supplemented or replaced by the Controller in writing or in text form by individual instructions (individual instructions). Instructions that go beyond the service agreed in the service contract shall be treated as a request for a change in service. Verbal instructions shall be confirmed by the Controller immediately in writing or in text form. The Controller shall be entitled to issue corresponding instructions at any time.
- (4) All instructions issued shall be documented by both the Controller and the Processor.

- (5) If the Processor is of the opinion that a permissible individual instruction violates applicable data protection law, Processor shall notify the Controller thereof without undue delay. The Processor shall be entitled to suspend the corresponding instruction until it is confirmed or amended by the Controller.

§ 4 Audits, Inspection

- (1) Prior to the commencement of data processing and thereafter on a regular basis (cf. paragraph 4), the Controller shall convince itself of the Processor's compliance with its obligations pursuant to Art. 28 of the GDPR, in particular the technical and organizational measures (see Section 6) and shall document the result. For this purpose, he may obtain information from the Processor or, in principle after timely appointment and coordination, personally inspect the Processor during normal business hours without disrupting operations or have an expert third party inspect the Processor, provided the third party is not in a competitive relationship with the Processor. This right is limited to a reasonable and necessary extent.
- (2) The Processor undertakes to provide the Controller, upon written request and within a reasonable period, with all information and evidence required to carry out an inspection.
- (3) The Processor shall be entitled, at its own discretion, considering the statutory provisions, not to disclose information which is sensitive with regard to the Processor's business or insofar as the Processor would violate statutory or other contractual provisions by disclosing it. The Controller shall not be entitled to have access to data or information concerning other Controllers of the Processor, to information concerning costs - unless these form the basis of the reimbursable or pass-through expenses - to quality review and contract management reports and to all other confidential data of the Processor which are not directly relevant to the agreed control purposes.
- (4) The Controller shall inform the Processor in due time (in principle at least two weeks in advance) about all circumstances related to the performance of the inspection. In principle, the Controller may carry out a maximum of one inspection per calendar year. This does not affect the Controller's right to carry out further inspections in the event of special occurrences.
- (5) The Processor may demand compensation from the Controller for enabling the inspection, depending on the time and effort involved. The amount shall be determined in accordance with the hourly rates for consulting services customary at the time of implementation on the part of the Processor.
- (6) If the Controller commissions a third party to carry out the inspection, the Processor shall oblige the third party in writing in the same way as the Processor is obliged to the Controller on the basis of this Agreement. In addition, the Controller shall oblige the third party to maintain secrecy and confidentiality, unless the third party is subject to a professional confidentiality obligation (e.g. German lawyers). Upon request of the Processor, the Controller shall submit to the Processor the obligation agreements with the third party. The Controller may not commission a competitor of the Processor with the inspection (Exception: lawyers).

- (7) Pursuant to Art. 28 (5) of the GDPR, the Processor's compliance with approved codes of conduct pursuant to Art. 40 of the GDPR or an approved certification procedure pursuant to Art. 42 of the GDPR may be used to demonstrate sufficient guarantees within the meaning of Art. 28 (1) and (4) of the GDPR instead of on-site inspections. The Processor undertakes to inform the Controller without undue delay of the exclusion of approved codes of conduct pursuant to Art. 41 (4) GDPR and the revocation of a certification pursuant to Art. 42 (7) GDPR.

§ 5 Rights and Obligations of the Processor

- (1) The Processor warrants to comply with the following statutory and contractual obligations. These include in particular:
- a. the obligation to appoint a data protection officer to the extent it is required by law;
 - b. the obligation to employ staff only who have been obligated to confidentiality and data secrecy and who have been trained in advance with the data protection provisions relevant to them when processing personal data. The Processor and any person subordinate to the Processor who has access to personal data may process such data exclusively in accordance with the Controller's instructions, including the powers granted in this Agreement, unless it is required by law to process such data. Data secrecy shall continue to exist after termination of the contract (maintenance of confidentiality pursuant to Art. 28 (3) b), 29, 32 (4) GDPR);
 - c. the obligation to inform the Controller without undue delay about control actions and measures of the supervisory authority, insofar as they relate to this contract. This shall also apply insofar as a competent authority is investigating the Processor in the context of administrative or criminal proceedings with regard to the processing of personal data in the course of the commissioned processing;
 - d. the obligation to support the Controller to the best of its ability, insofar as the Controller, for its part, is subject to control by the supervisory authority, administrative offense or criminal proceedings, a data subject's or third party's claim for information or liability or another claim in connection with the commissioned processing at the Processor;
 - e. the obligation to cooperate, together with the contracting entity, with the supervisory authority in the performance of its duties upon request;
- (2) The Processor shall correct, delete or block the contractual data if the Controller so instructs. The destruction of data storages and other materials in compliance with data protection requirements shall be carried out by the Processor on the basis of an individual instruction by the Controller, unless already agreed in the service agreement. In special cases to be determined by the Controller, storage or handover shall take place.

- (3) In the fulfillment of the rights of the data subjects according to Art. 12 to 22 GDPR by the Controller, the Processor shall cooperate to the necessary extent and support the Controller appropriately as far as possible. The Processor shall forward all inquiries, insofar as they are recognizably directed at the Controller. The Processor may only provide information about personal data from the contractual relationship to third parties or the data subject after prior instruction or consent by the Controller.
- (4) The Processor shall support the Controller in complying with the obligations set out in Articles 32 to 36 of the GDPR. This relates in particular to the security of personal data and obligations in the event of data breaches. In particular, the Processor shall cooperate to the necessary extent in required data protection impact assessments and prior consultations with the Controller and provide the Controller with appropriate support to the extent possible.
- (5) The Controller shall inform the Processor without undue delay if it discovers errors or irregularities with regard to data protection provisions during the examination. The Processor shall notify the Controller without undue delay of any disruptions, violations by the Processor or the persons employed by the Processor and against provisions under data protection law or these stipulations as well as of any suspected data protection violations or irregularities in the processing of personal data. This shall also apply in particular with regard to any reporting and notification obligations of the Controller pursuant to Art. 33 and Art. 34 GDPR. The Processor assures to support the Controller, if necessary, in its obligations pursuant to Art. 33 and 34 of the GDPR. Notifications pursuant to Art. 33 or 34 of the GDPR for the Controller may only be carried out by the Processor in consultation.
- (6) The Processor shall support the Controller in fulfilling its obligation to create a register of processing activities and the information obligations towards data subjects and shall provide the Controller with relevant information in this context.
- (7) The Processor may claim remuneration for support services which are not included in the service description, or which are not attributable to any misconduct on the part of the Processor. The amount shall be determined in accordance with the hourly rates for consulting services on the part of the Processor customary at the time of implementation.

§ 6 Technical and Organizational Measures

- (1) The Processor shall ensure an adequate level of protection through technical and organizational measures that take into account the circumstances and purposes of the Processing as well as the predicted likelihood and severity of a possible breach of rights due to security breaches and allow for immediate detection of relevant breach events. The Processor shall regularly monitor the internal processes as well as the technical and organizational measures to ensure that the Processing in its area of responsibility is carried out in compliance with the requirements of applicable data protection law and that the protection of the rights of the data subject is ensured.

- (2) The Processor shall document the implementation of the technical and organizational measures set out and required in the run-up to the award of the contract before the start of the processing, in particular with regard to the specific execution of the contract, and shall hand them over to the Controller for inspection, see **Annex C**. If the inspection/audit by the Controller reveals a need for adaptation, this must be implemented by mutual agreement.
- (3) The Processor shall establish the security of the processing pursuant to Art. 28 (3) c), 32 GDPR, in particular in connection with Art. 5 GDPR. Overall, the measures to be taken are data security measures and to ensure a level of protection appropriate to the risk with regard to confidentiality, integrity, availability and the resilience of the systems. In this context, the state of the art, the implementation costs and the nature, scope and purposes of the processing as well as the varying likelihood and severity of the risk to the rights and freedoms of natural persons within the meaning of Article 32 (1) of the GDPR must be taken into account (details in **Annex C**).
- (4) The technical and organizational measures are subject to technical progress and further development. In this respect, the Processor is permitted to implement alternative adequate measures. The Processor reserves the right to change the security measures taken. The Processor shall ensure that the contractually agreed level of protection is not undercut. Significant changes shall be documented.
- (5) A company data protection officer has been appointed at the Processor. The Processor shall publish the contact data of the data protection officer on its website and notify the supervisory authority thereof. The Processor shall provide appropriate proof of publication and notification at the request of the Controller.

§ 7 Use of Sub-processors

- (1) The Controller agrees and consents to the Processor using affiliated companies of the Processor for the performance of its contractually agreed services or sub-processing companies with the specified services (sub-processors). The Processor shall carefully select sub-processors according to their suitability and in compliance with the provisions of applicable data protection regulations. When assessing the suitability, the Processor shall in particular take into account the technical and organizational measures taken by the sub-processors within the meaning of Article 32 of the GDPR. The relevant test documents in this regard shall be made available to the Controller upon request.
- (2) The use of a sub-processor and/or the change of existing sub-processors are permissible to the extent:
 - the Processor notifies the Controller of such outsourcing to sub-processors at least two weeks in advance in writing or in text form, and
 - the Controller does not object to the planned outsourcing in writing or in text form to the Processor for good cause within two weeks after receipt of the notification of the planned outsourcing and
 - a contractual agreement in accordance with Article 28 (2) - (4) of the GDPR is used as a basis.

- (3) The transfer of personal data of the Controller to the sub-processor and its initial activity shall only be permitted once all requirements for sub-processing have been met. If the sub-processing takes place, it shall be incumbent upon the Processor to transfer its data protection obligations under this Agreement to the sub-processor.
- (4) At the time of the conclusion of this Agreement, the sub-processors designated in **Annex D** are engaged in the processing of personal data to the extent specified therein. The Controller declares its consent to the commissioning of such sub-processors.
- (5) All contractual provisions in the contractual chain must also be imposed on the further sub-processor. The contract with the sub-processor must be in writing, which may also be in an electronic format (Art. 28(4) and (9) GDPR).
- (6) A sub-processor relationship requiring consent does not exist if the Processor commissions third parties as part of an ancillary service to the main service under the Service Agreement, such as in the case of external personnel, postal and shipping services or maintenance and user service. The Processor shall enter into agreements with this third party to the extent necessary to ensure appropriate data protection and data security and to take control measures.
- (7) Sub-processors in third countries may only be engaged if the special requirements of Art. 44 et seq. GDPR are met (e.g., adequacy decision of the Commission, standard data protection clauses/standard contractual clauses, approved codes of conduct).

§ 8 Liability

With regard to the regulatory content of this Agreement, the liability of the Parties shall be governed by Article 82 of the GDPR.

§ 9 Terms and Termination, Deletion and Return of Personal Data

- (1) The term and termination of this Agreement shall be governed by the terms and conditions governing the term and termination of the Service Agreement. Termination of the Service Agreement shall automatically result in termination of this Agreement. An isolated termination of this contract is excluded.
- (2) The Controller is obligated to treat all knowledge of the Processor's business secrets and data security measures obtained within the scope of the contractual relationship as confidential. This obligation shall remain in force even after termination of this contract.
- (3) At the latest upon termination of the service agreement, if applicable already after completion of the contractually agreed work or upon request by the Controller, the Processor shall hand over to the Controller all documents in its possession, created processing and/or utilization results as well as data files related to the contractual relationship. Alternatively, the data may be destroyed in accordance with data protection regulations under the Controller's instruction. The same shall apply to test and reject material. The deletion or destruction shall be confirmed to the Controller upon request in writing or in a documented electronic format, stating the date.

- (4) Proofs and documentation that serve as evidence of the proper data processing in accordance with the processing shall be kept by the Processor beyond the end of the contract in accordance with the respective retention period. The Processor may hand them over to the Controller at the end of the contract to relieve the Processor.

§ 10 Other Obligations, Choice of Law

- (1) If the Controller's data at the Processor is endangered by attachment or seizure, by insolvency or composition proceedings or by other events or measures of third parties, the Processor shall inform the Controller thereof without undue delay. The Processor shall immediately inform all persons responsible in this context that the sovereignty and ownership of the data lies exclusively with the Controller as the controller within the meaning of the General Data Protection Regulation and the Federal Data Protection Act.
- (2) Amendments and supplements to this Annex and all its components - including any warranties of the Processor - shall require a written agreement and the express indication that it is an amendment or supplement to these Terms and Conditions. This shall also apply to any waiver of this formal requirement.
- (3) In the event of any contradictions, the provisions of this Annex on data protection shall take precedence over the provisions of the Agreement. Should individual parts of this Annex be invalid, this shall not affect the validity of the rest of the Annex.
- (4) This agreement is exclusively subject to German law. The place of jurisdiction is Bonn (Germany).

FOR THE PROCESSOR

KUALA LUMPUR

9th June 2026

Place, date



Signature

Alan Tang, Chief of Staff

Name, Position

FOR THE CONTROLLER

Siheung
10 June 2026

Place, date



Signature

Cho Tae-shin, Representative Director

Name, Position

Annex A	Standard Contractual Clauses
Annex B	Purposes, Data Categories, Data Subjects
Annex C	Technical and Organizational measures
Annex D	Sub-Processors

Annex A – Standard Contractual Clauses

SECTION I

Clause 1

Purpose and scope

(a) The purpose of these standard contractual clauses is to ensure compliance with the requirements of Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (General Data Protection Regulation)¹ for the transfer of personal data to a third country.

(b) The Parties:

(i) the natural or legal person(s), public authority/ies, agency/ies or other body/ies (hereinafter “entity/ies”) transferring the personal data, as listed in Annex I.A. (hereinafter each “data exporter”), and

(ii) the entity/ies in a third country receiving the personal data from the data exporter, directly or indirectly via another entity also Party to these Clauses, as listed in Annex I.A. (hereinafter each “data importer”)

have agreed to these standard contractual clauses (hereinafter: “Clauses”).

(c) These Clauses apply with respect to the transfer of personal data as specified in Annex I.B.

(d) The Appendix to these Clauses containing the Annexes referred to therein forms an integral part of these Clauses.

Clause 2

Effect and invariability of the Clauses

(a) These Clauses set out appropriate safeguards, including enforceable data subject rights and effective legal remedies, pursuant to Article 46(1) and Article 46 (2)(c) of Regulation (EU) 2016/679 and, with respect to data transfers from controllers to processors and/or processors to processors, standard contractual clauses pursuant to Article 28(7) of Regulation (EU) 2016/679, provided they are not modified, except to select the appropriate Module(s) or to add or update information in the Appendix. This does not prevent the Parties from including the standard contractual clauses laid down in these Clauses in a wider contract and/or to add other clauses or additional safeguards, provided that they do not contradict, directly or indirectly, these Clauses or prejudice the fundamental rights or freedoms of data subjects.

¹ [\(1\)](#) Where the data exporter is a processor subject to Regulation (EU) 2016/679 acting on behalf of a Union institution or body as controller, reliance on these Clauses when engaging another processor (sub-processing) not subject to Regulation (EU) 2016/679 also ensures compliance with Article 29(4) of Regulation (EU) 2018/1725 of the European Parliament and of the Council of 23 October 2018 on the protection of natural persons with regard to the processing of personal data by the Union institutions, bodies, offices and agencies and on the free movement of such data, and repealing Regulation (EC) No 45/2001 and Decision No 1247/2002/EC ([OJ L 295, 21.11.2018, p. 39](#)), to the extent these Clauses and the data protection obligations as set out in the contract or other legal act between the controller and the processor pursuant to Article 29(3) of Regulation (EU) 2018/1725 are aligned. This will in particular be the case where the controller and processor rely on the standard contractual clauses included in Decision 2021/915.

(b) These Clauses are without prejudice to obligations to which the data exporter is subject by virtue of Regulation (EU) 2016/679.

Clause 3

Third-party beneficiaries

(a) Data subjects may invoke and enforce these Clauses, as third-party beneficiaries, against the data exporter and/or data importer, with the following exceptions:

- (i) Clause 1, Clause 2, Clause 3, Clause 6, Clause 7;
- (ii) Clause 8 - Clause 8.1(b), 8.9(a), (c), (d) and (e);
- (iii) Clause 9 - Clause 9(a), (c), (d) and (e);
- (iv) Clause 12 - Clause 12(a), (d) and (f);
- (v) Clause 13;
- (vi) Clause 15.1(c), (d) and (e);
- (vii) Clause 16(e);
- (viii) Clause 18 - Clause 18(a) and (b).

(b) Paragraph (a) is without prejudice to rights of data subjects under Regulation (EU) 2016/679.

Clause 4

Interpretation

(a) Where these Clauses use terms that are defined in Regulation (EU) 2016/679, those terms shall have the same meaning as in that Regulation.

(b) These Clauses shall be read and interpreted in the light of the provisions of Regulation (EU) 2016/679.

(c) These Clauses shall not be interpreted in a way that conflicts with rights and obligations provided for in Regulation (EU) 2016/679.

Clause 5

Hierarchy

In the event of a contradiction between these Clauses and the provisions of related agreements between the Parties, existing at the time these Clauses are agreed or entered into thereafter, these Clauses shall prevail.

Clause 6

Description of the transfer(s)

The details of the transfer(s), and in particular the categories of personal data that are transferred and the purpose(s) for which they are transferred, are specified in Annex I.B.

Clause 7 – Optional

Docking clause

(a) An entity that is not a Party to these Clauses may, with the agreement of the Parties, accede to these Clauses at any time, either as a data exporter or as a data importer, by completing the Appendix and signing Annex I.A.

(b) Once it has completed the Appendix and signed Annex I.A, the acceding entity shall become a Party to these Clauses and have the rights and obligations of a data exporter or data importer in accordance with its designation in Annex I.A.

(c) The acceding entity shall have no rights or obligations arising under these Clauses from the period prior to becoming a Party.

SECTION II – OBLIGATIONS OF THE PARTIES

Clause 8

Data protection safeguards

The data exporter warrants that it has used reasonable efforts to determine that the data importer is able, through the implementation of appropriate technical and organisational measures, to satisfy its obligations under these Clauses.

8.1 Instructions

(a) The data importer shall process the personal data only on documented instructions from the data exporter. The data exporter may give such instructions throughout the duration of the contract.

(b) The data importer shall immediately inform the data exporter if it is unable to follow those instructions.

8.2 Purpose limitation

The data importer shall process the personal data only for the specific purpose(s) of the transfer, as set out in Annex I.B, unless on further instructions from the data exporter.

8.3 Transparency

On request, the data exporter shall make a copy of these Clauses, including the Appendix as completed by the Parties, available to the data subject free of charge. To the extent necessary to protect business secrets or other confidential information, including the measures described in Annex II and personal data, the data exporter may redact part of the text of the Appendix to these Clauses prior to sharing a copy, but shall provide a meaningful summary where the data subject would otherwise not be able to understand the its content or exercise his/her rights. On request, the Parties shall provide the data subject with the reasons for the redactions, to the extent possible without revealing the redacted information. This Clause is without prejudice to the obligations of the data exporter under Articles 13 and 14 of Regulation (EU) 2016/679.

8.4 Accuracy

If the data importer becomes aware that the personal data it has received is inaccurate, or has become outdated, it shall inform the data exporter without undue delay. In this case, the data importer shall cooperate with the data exporter to erase or rectify the data.

8.5 Duration of processing and erasure or return of data

Processing by the data importer shall only take place for the duration specified in Annex I.B. After the end of the provision of the processing services, the data importer shall, at the choice of the data exporter, delete all personal data processed on behalf of the data exporter and certify to the data exporter that it has done so, or return to the data exporter all personal data processed on its behalf and delete existing copies. Until the data is deleted or returned, the data importer shall continue to ensure compliance with these Clauses. In case of local laws applicable to the data importer that prohibit return or deletion of the personal data, the data importer warrants that it will continue to ensure compliance with these Clauses and will only process it to the extent and for as long as required under that local law. This is without prejudice to Clause 14, in particular the requirement for the data importer under Clause 14(e) to notify the data exporter throughout the duration of the contract if it has reason to believe that it is or has become subject to laws or practices not in line with the requirements under Clause 14(a).

8.6 Security of processing

(a) The data importer and, during transmission, also the data exporter shall implement appropriate technical and organisational measures to ensure the security of the data, including protection against a breach of security leading to accidental or unlawful destruction, loss, alteration, unauthorised disclosure or access to that data (hereinafter “personal data breach”). In assessing the appropriate level of security, the Parties shall take due account of the state of the art, the costs of implementation, the nature, scope, context and purpose(s) of processing and the risks involved in the processing for the data subjects. The Parties shall in particular consider having recourse to encryption or pseudonymisation, including during transmission, where the purpose of processing can be fulfilled in that manner. In case of pseudonymisation, the additional information for attributing the personal data to a specific data subject shall, where possible, remain under the exclusive control of the data exporter. In complying with its obligations under this paragraph, the data importer shall at least implement the technical and organisational measures specified in Annex II. The data importer shall carry out regular checks to ensure that these measures continue to provide an appropriate level of security.

(b) The data importer shall grant access to the personal data to members of its personnel only to the extent strictly necessary for the implementation, management and monitoring of the contract. It shall ensure that persons authorised to process the personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality.

(c) In the event of a personal data breach concerning personal data processed by the data importer under these Clauses, the data importer shall take appropriate measures to address the breach, including measures to mitigate its adverse effects. The data importer shall also notify the data exporter without undue delay after having become aware of the breach. Such notification shall contain the details of a contact point where more information can be obtained, a description of the nature of the breach (including, where possible, categories and approximate number of data subjects and personal data records concerned), its likely consequences and the measures taken or proposed to address the breach including, where appropriate, measures to mitigate its possible adverse effects. Where, and in so far as, it is not possible to provide all information at the same time, the initial notification shall contain the information then available and further information shall, as it becomes available, subsequently be provided without undue delay.

(d) The data importer shall cooperate with and assist the data exporter to enable the data exporter to comply with its obligations under Regulation (EU) 2016/679, in particular to notify the competent supervisory authority and the affected data subjects, taking into account the nature of processing and the information available to the data importer.

8.7 Sensitive data

Where the transfer involves personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, genetic data, or biometric data for the purpose of uniquely identifying a natural person, data concerning health or a person’s sex life or sexual orientation, or data relating to criminal convictions and offences (hereinafter “sensitive data”), the data importer shall apply the specific restrictions and/or additional safeguards described in Annex I.B.

8.8 Onward transfers

The data importer shall only disclose the personal data to a third party on documented instructions from the data exporter. In addition, the data may only be disclosed to a third party located outside the European Union² (in the same country as the data importer or in another third country, hereinafter “onward transfer”) if the third party is or agrees to be bound by these Clauses, under the appropriate Module, or if:

- (i) the onward transfer is to a country benefitting from an adequacy decision pursuant to Article 45 of Regulation (EU) 2016/679 that covers the onward transfer;
- (ii) the third party otherwise ensures appropriate safeguards pursuant to Articles 46 or 47 Regulation of (EU) 2016/679 with respect to the processing in question;
- (iii) the onward transfer is necessary for the establishment, exercise or defence of legal claims in the context of specific administrative, regulatory or judicial proceedings; or
- (iv) the onward transfer is necessary in order to protect the vital interests of the data subject or of another natural person.

Any onward transfer is subject to compliance by the data importer with all the other safeguards under these Clauses, in particular purpose limitation.

8.9 Documentation and compliance

- (a) The data importer shall promptly and adequately deal with enquiries from the data exporter that relate to the processing under these Clauses.
- (b) The Parties shall be able to demonstrate compliance with these Clauses. In particular, the data importer shall keep appropriate documentation on the processing activities carried out on behalf of the data exporter.
- (c) The data importer shall make available to the data exporter all information necessary to demonstrate compliance with the obligations set out in these Clauses and at the data exporter’s request, allow for and contribute to audits of the processing activities covered by these Clauses, at reasonable intervals or if there are indications of non-compliance. In deciding on a review or audit, the data exporter may take into account relevant certifications held by the data importer.
- (d) The data exporter may choose to conduct the audit by itself or mandate an independent auditor. Audits may include inspections at the premises or physical facilities of the data importer and shall, where appropriate, be carried out with reasonable notice.
- (e) The Parties shall make the information referred to in paragraphs (b) and (c), including the results of any audits, available to the competent supervisory authority on request.

² The Agreement on the European Economic Area (EEA Agreement) provides for the extension of the European Union's internal market to the three EEA States Iceland, Liechtenstein and Norway. The Union data protection legislation, including Regulation (EU) 2016/679, is covered by the EEA Agreement and has been incorporated into Annex XI thereto. Therefore, any disclosure by the data importer to a third party located in the EEA does not qualify as an onward transfer for the purpose of these Clauses.

Clause 9

Use of sub-processors

(a) The data importer has the data exporter's general authorisation for the engagement of sub-processor(s) from an agreed list. The data importer shall specifically inform the data exporter in writing of any intended changes to that list through the addition or replacement of sub-processors at least two weeks in advance, thereby giving the data exporter sufficient time to be able to object to such changes prior to the engagement of the sub-processor(s). The data importer shall provide the data exporter with the information necessary to enable the data exporter to exercise its right to object.

(b) Where the data importer engages a sub-processor to carry out specific processing activities (on behalf of the data exporter), it shall do so by way of a written contract that provides for, in substance, the same data protection obligations as those binding the data importer under these Clauses, including in terms of third-party beneficiary rights for data subjects. The Parties agree that, by complying with this Clause, the data importer fulfils its obligations under Clause 8.8. The data importer shall ensure that the sub-processor complies with the obligations to which the data importer is subject pursuant to these Clauses.

(c) The data importer shall provide, at the data exporter's request, a copy of such a sub-processor agreement and any subsequent amendments to the data exporter. To the extent necessary to protect business secrets or other confidential information, including personal data, the data importer may redact the text of the agreement prior to sharing a copy.

(d) The data importer shall remain fully responsible to the data exporter for the performance of the sub-processor's obligations under its contract with the data importer. The data importer shall notify the data exporter of any failure by the sub-processor to fulfil its obligations under that contract.

(e) The data importer shall agree a third-party beneficiary clause with the sub-processor whereby – in the event the data importer has factually disappeared, ceased to exist in law or has become insolvent – the data exporter shall have the right to terminate the sub-processor contract and to instruct the sub-processor to erase or return the personal data.

Clause 10

Data subject rights

(a) The data importer shall promptly notify the data exporter of any request it has received from a data subject. It shall not respond to that request itself unless it has been authorised to do so by the data exporter.

(b) The data importer shall assist the data exporter in fulfilling its obligations to respond to data subjects' requests for the exercise of their rights under Regulation (EU) 2016/679. In this regard, the Parties shall set out in Annex II the appropriate technical and organisational measures, taking into account the nature of the processing, by which the assistance shall be provided, as well as the scope and the extent of the assistance required.

(c) In fulfilling its obligations under paragraphs (a) and (b), the data importer shall comply with the instructions from the data exporter.

Clause 11

Redress

(a) The data importer shall inform data subjects in a transparent and easily accessible format, through individual notice or on its website, of a contact point authorised to handle complaints. It shall deal promptly with any complaints it receives from a data subject.

(b) In case of a dispute between a data subject and one of the Parties as regards compliance with these Clauses, that Party shall use its best efforts to resolve the issue amicably in a timely fashion. The Parties shall keep each other informed about such disputes and, where appropriate, cooperate in resolving them.

(c) Where the data subject invokes a third-party beneficiary right pursuant to Clause 3, the data importer shall accept the decision of the data subject to:

- (i) lodge a complaint with the supervisory authority in the Member State of his/her habitual residence or place of work, or the competent supervisory authority pursuant to Clause 13;
- (ii) refer the dispute to the competent courts within the meaning of Clause 18.

(d) The Parties accept that the data subject may be represented by a not-for-profit body, organisation or association under the conditions set out in Article 80(1) of Regulation (EU) 2016/679.

(e) The data importer shall abide by a decision that is binding under the applicable EU or Member State law.

(f) The data importer agrees that the choice made by the data subject will not prejudice his/her substantive and procedural rights to seek remedies in accordance with applicable laws.

Clause 12

Liability

(a) Each Party shall be liable to the other Party/ies for any damages it causes the other Party/ies by any breach of these Clauses.

(b) The data importer shall be liable to the data subject, and the data subject shall be entitled to receive compensation, for any material or non-material damages the data importer or its sub-processor causes the data subject by breaching the third-party beneficiary rights under these Clauses.

(c) Notwithstanding paragraph (b), the data exporter shall be liable to the data subject, and the data subject shall be entitled to receive compensation, for any material or non-material damages the data exporter or the data importer (or its sub-processor) causes the data subject by breaching the third-party beneficiary rights under these Clauses. This is without prejudice to the liability of the data exporter and, where the data exporter is a processor acting on behalf of a controller, to the liability of the controller under Regulation (EU) 2016/679 or Regulation (EU) 2018/1725, as applicable.

(d) The Parties agree that if the data exporter is held liable under paragraph (c) for damages caused by the data importer (or its sub-processor), it shall be entitled to claim back from the data importer that part of the compensation corresponding to the data importer's responsibility for the damage.

(e) Where more than one Party is responsible for any damage caused to the data subject as a result of a breach of these Clauses, all responsible Parties shall be jointly and severally liable and the data subject is entitled to bring an action in court against any of these Parties.

(f) The Parties agree that if one Party is held liable under paragraph (e), it shall be entitled to claim back from the other Party/ies that part of the compensation corresponding to its / their responsibility for the damage.

(g) The data importer may not invoke the conduct of a sub-processor to avoid its own liability.

Clause 13

Supervision

(a) [Where the data exporter is not established in an EU Member State, but falls within the territorial scope of application of Regulation (EU) 2016/679 in accordance with its Article 3(2) without however having to appoint a representative pursuant to Article 27(2) of Regulation (EU) 2016/679:] The supervisory authority of one of the Member States in which the data subjects whose personal data is transferred under these Clauses in relation to the offering of goods or services to them, or whose behaviour is monitored, are located, as indicated in Annex I.C, shall act as competent supervisory authority.

(b) The data importer agrees to submit itself to the jurisdiction of and cooperate with the competent supervisory authority in any procedures aimed at ensuring compliance with these Clauses. In particular, the data importer agrees to respond to enquiries, submit to audits and comply with the measures adopted by the supervisory authority, including remedial and compensatory measures. It shall provide the supervisory authority with written confirmation that the necessary actions have been taken.

SECTION III – LOCAL LAWS AND OBLIGATIONS IN CASE OF ACCESS BY PUBLIC AUTHORITIES

Clause 14

Local laws and practices affecting compliance with the Clauses

(a) The Parties warrant that they have no reason to believe that the laws and practices in the third country of destination applicable to the processing of the personal data by the data importer, including any requirements to disclose personal data or measures authorising access by public authorities, prevent the data importer from fulfilling its obligations under these Clauses. This is based on the understanding that laws and practices that respect the essence of the fundamental rights and freedoms and do not exceed what is necessary and proportionate in a democratic society to safeguard one of the objectives listed in Article 23(1) of Regulation (EU) 2016/679, are not in contradiction with these Clauses.

(b) The Parties declare that in providing the warranty in paragraph (a), they have taken due account in particular of the following elements:

(i) the specific circumstances of the transfer, including the length of the processing chain, the number of actors involved and the transmission channels used; intended onward transfers; the type of recipient; the purpose of processing; the categories and format of the transferred personal data; the economic sector in which the transfer occurs; the storage location of the data transferred;

(ii) the laws and practices of the third country of destination– including those requiring the disclosure of data to public authorities or authorising access by such authorities – relevant in light of the specific circumstances of the transfer, and the applicable limitations and safeguards³;

(iii) any relevant contractual, technical or organisational safeguards put in place to supplement the safeguards under these Clauses, including measures applied during transmission and to the processing of the personal data in the country of destination.

(c) The data importer warrants that, in carrying out the assessment under paragraph (b), it has made its best efforts to provide the data exporter with relevant information and agrees that it will continue to cooperate with the data exporter in ensuring compliance with these Clauses.

(d) The Parties agree to document the assessment under paragraph (b) and make it available to the competent supervisory authority on request.

(e) The data importer agrees to notify the data exporter promptly if, after having agreed to these Clauses and for the duration of the contract, it has reason to believe that it is or has become subject to laws or practices not in line with the requirements under paragraph (a), including following a change in the laws of the third country or a measure (such as a disclosure request) indicating an application of such laws in practice that is not in line with the requirements in paragraph (a).

³ As regards the impact of such laws and practices on compliance with these Clauses, different elements may be considered as part of an overall assessment. Such elements may include relevant and documented practical experience with prior instances of requests for disclosure from public authorities, or the absence of such requests, covering a sufficiently representative time-frame. This refers in particular to internal records or other documentation, drawn up on a continuous basis in accordance with due diligence and certified at senior management level, provided that this information can be lawfully shared with third parties. Where this practical experience is relied upon to conclude that the data importer will not be prevented from complying with these Clauses, it needs to be supported by other relevant, objective elements, and it is for the Parties to consider carefully whether these elements together carry sufficient weight, in terms of their reliability and representativeness, to support this conclusion. In particular, the Parties have to take into account whether their practical experience is corroborated and not contradicted by publicly available or otherwise accessible, reliable information on the existence or absence of requests within the same sector and/or the application of the law in practice, such as case law and reports by independent oversight bodies

(f) Following a notification pursuant to paragraph (e), or if the data exporter otherwise has reason to believe that the data importer can no longer fulfil its obligations under these Clauses, the data exporter shall promptly identify appropriate measures (e.g. technical or organisational measures to ensure security and confidentiality) to be adopted by the data exporter and/or data importer to address the situation. The data exporter shall suspend the data transfer if it considers that no appropriate safeguards for such transfer can be ensured, or if instructed by the competent supervisory authority to do so. In this case, the data exporter shall be entitled to terminate the contract, insofar as it concerns the processing of personal data under these Clauses. If the contract involves more than two Parties, the data exporter may exercise this right to termination only with respect to the relevant Party, unless the Parties have agreed otherwise. Where the contract is terminated pursuant to this Clause, Clause 16(d) and (e) shall apply.

Clause 15

Obligations of the data importer in case of access by public authorities

15.1 Notification

(a) The data importer agrees to notify the data exporter and, where possible, the data subject promptly (if necessary with the help of the data exporter) if it:

(i) receives a legally binding request from a public authority, including judicial authorities, under the laws of the country of destination for the disclosure of personal data transferred pursuant to these Clauses; such notification shall include information about the personal data requested, the requesting authority, the legal basis for the request and the response provided; or

(ii) becomes aware of any direct access by public authorities to personal data transferred pursuant to these Clauses in accordance with the laws of the country of destination; such notification shall include all information available to the importer.

(b) If the data importer is prohibited from notifying the data exporter and/or the data subject under the laws of the country of destination, the data importer agrees to use its best efforts to obtain a waiver of the prohibition, with a view to communicating as much information as possible, as soon as possible. The data importer agrees to document its best efforts in order to be able to demonstrate them on request of the data exporter.

(c) Where permissible under the laws of the country of destination, the data importer agrees to provide the data exporter, at regular intervals for the duration of the contract, with as much relevant information as possible on the requests received (in particular, number of requests, type of data requested, requesting authority/ies, whether requests have been challenged and the outcome of such challenges, etc.).

(d) The data importer agrees to preserve the information pursuant to paragraphs (a) to (c) for the duration of the contract and make it available to the competent supervisory authority on request.

(e) Paragraphs (a) to (c) are without prejudice to the obligation of the data importer pursuant to Clause 14(e) and Clause 16 to inform the data exporter promptly where it is unable to comply with these Clauses.

15.2 Review of legality and data minimisation

(a) The data importer agrees to review the legality of the request for disclosure, in particular whether it remains within the powers granted to the requesting public authority, and to challenge the request if, after careful assessment, it concludes that there are reasonable grounds to consider that the request is unlawful under the laws of the country of destination, applicable obligations under international law and principles of international comity. The data importer shall, under the same conditions, pursue possibilities of appeal. When challenging a request, the data importer shall seek interim measures with a view to suspending the effects of the request until the competent judicial authority has decided on its merits. It shall not disclose the personal data requested until required to do so under the applicable procedural rules. These requirements are without prejudice to the obligations of the data importer under Clause 14(e).

(b) The data importer agrees to document its legal assessment and any challenge to the request for disclosure and, to the extent permissible under the laws of the country of destination, make the documentation available to the data exporter. It shall also make it available to the competent supervisory authority on request.

(c) The data importer agrees to provide the minimum amount of information permissible when responding to a request for disclosure, based on a reasonable interpretation of the request.

SECTION IV – FINAL PROVISIONS

Clause 16

Non-compliance with the Clauses and termination

(a) The data importer shall promptly inform the data exporter if it is unable to comply with these Clauses, for whatever reason.

(b) In the event that the data importer is in breach of these Clauses or unable to comply with these Clauses, the data exporter shall suspend the transfer of personal data to the data importer until compliance is again ensured or the contract is terminated. This is without prejudice to Clause 14(f).

(c) The data exporter shall be entitled to terminate the contract, insofar as it concerns the processing of personal data under these Clauses, where:

- (i) the data exporter has suspended the transfer of personal data to the data importer pursuant to paragraph (b) and compliance with these Clauses is not restored within a reasonable time and in any event within one month of suspension;
- (ii) the data importer is in substantial or persistent breach of these Clauses; or
- (iii) the data importer fails to comply with a binding decision of a competent court or supervisory authority regarding its obligations under these Clauses.

In these cases, it shall inform the competent supervisory authority of such non-compliance. Where the contract involves more than two Parties, the data exporter may exercise this right to termination only with respect to the relevant Party, unless the Parties have agreed otherwise.

(d) Personal data that has been transferred prior to the termination of the contract pursuant to paragraph (c) shall at the choice of the data exporter immediately be returned to the data exporter or deleted in its entirety. The same shall apply to any copies of the data.

The data importer shall certify the deletion of the data to the data exporter. Until the data is deleted or returned, the data importer shall continue to ensure compliance with these Clauses. In case of local laws applicable to the data importer that prohibit the return or deletion of the transferred personal data, the data importer warrants that it will continue to ensure compliance with these Clauses and will only process the data to the extent and for as long as required under that local law.

(e) Either Party may revoke its agreement to be bound by these Clauses where (i) the European Commission adopts a decision pursuant to Article 45(3) of Regulation (EU) 2016/679 that covers the transfer of personal data to which these Clauses apply; or (ii) Regulation (EU) 2016/679 becomes part of the legal framework of the country to which the personal data is transferred. This is without prejudice to other obligations applying to the processing in question under Regulation (EU) 2016/679.

Clause 17

Governing law

These Clauses shall be governed by the law of one of the EU Member States, provided such law allows for third-party beneficiary rights. The Parties agree that this shall be the law of Germany.

Clause 18

Choice of forum and jurisdiction

- (a) Any dispute arising from these Clauses shall be resolved by the courts of an EU Member State.
 - (b) The Parties agree that those shall be the courts of Germany (specify Member State). .
 - (c) A data subject may also bring legal proceedings against the data exporter and/or data importer before the courts of the Member State in which he/she has his/her habitual residence.
 - (d) The Parties agree to submit themselves to the jurisdiction of such courts.
-

APPENDIX TO THE SCC

EXPLANATORY NOTE:

It must be possible to clearly distinguish the information applicable to each transfer or category of transfers and, in this regard, to determine the respective role(s) of the Parties as data exporter(s) and/or data importer(s). This does not necessarily require completing and signing separate appendices for each transfer/category of transfers and/or contractual relationship, where this transparency can be achieved through one appendix. However, where necessary to ensure sufficient clarity, separate appendices should be used.

ANNEX I

A. LIST OF PARTIES

Data exporter(s): *[Identity and contact details of the data exporter(s) and, where applicable, of its/their data protection officer and/or representative in the European Union]*

Name: **SSANCAR LTD**

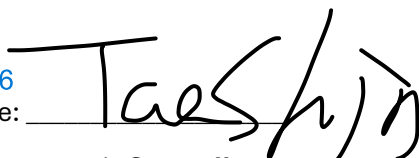
Address: **163, Sangidaehak-ro, Siheung-si, Gyeonggi-do, Republic of Korea**

Contact person's name, position and contact details: ...

- Name: **Cho Tae-shin**
- Position: **Representative Director**
- Email: **man997770@gmail.com**

Activities relevant to the data transferred under these Clauses: **SSANCAR LTD uses the Respond.io platform to manage communications with its own customers and contacts across supported messaging channels. In doing so, it transfers personal data to Respond.io for processing in connection with the provision of messaging and communication services. SSANCAR LTD acts as a controller and determines the purposes and means of the processing.**

10 June 2026
Signature and date: _____



Role (controller/processor): **Controller**

Data importer(s): *[Identity and contact details of the data importer(s), including any contact person with responsibility for data protection]*

Name: **Rocketbots Limited**

Address: **Unit 2406B, 24/F, Low Block, Grand Millennium Plaza, 181 Queen's Road Central, Sheung Wan, Hong Kong**

Contact person's name, position and contact details:

- Name: **Alan Tang**
- Position: **Chief of Staff**
- Email: alan@rocketbots.io

Activities relevant to the data transferred under these Clauses: **Respond.io provides a business messaging platform used by customers to manage and automate communications across messaging channels (e.g., WhatsApp, Messenger, web chat). Respond.io processes personal data on behalf of its customers to route messages, identify senders, associate conversations with business accounts, and enable real-time interaction. It also processes limited business contact data to assess product fit and initiate outreach.**

Signature and date: _____



Role (controller/processor): **Processor**

B. DESCRIPTION OF TRANSFER

Categories of data subjects whose personal data is transferred

- *Our Customer's Employees*
- *Customers of our Customer*

Categories of personal data transferred

- *Our Customer*
 - *your Company's size /employees;*
 - *company Name / website;*
 - *work- email address;*
 - *phone number;*
 - *the date and time of accessing one of our Internet pages;*
 - *your browser type;*
 - *the browser settings;*
 - *the operating system used;*
 - *the last page you visited;*
 - *the amount of data transferred and the access status (file transferred, file not found, etc.) and;*
 - *your IP address.*
- *Customers of our Customer*
 - *the amount of data transferred and the access status (file transferred, file not found, etc.) and;*
 - *first name and last name;*
 - *email address*
 - *phone number.*

Sensitive data transferred (if applicable) and applied restrictions or safeguards that fully take into consideration the nature of the data and the risks involved, such as for instance strict purpose limitation, access restrictions (including access only for staff having followed specialised training), keeping a record of access to the data, restrictions for onward transfers or additional security measures.

- *No sensitive data will be transferred.*
- *The frequency of the transfer (e.g. whether the data is transferred on a one-off or continuous basis).*
- *The data is transferred on a continuous basis as part of Respond.io's multi-tenant architecture. Each customer account operates in a logically isolated environment, with data tagged and segmented using unique account and user identifiers to ensure separation and traceability across tenants.*

Nature of the processing

The nature of the processing includes the collection, structuring, routing, storage, retrieval, display, and deletion of personal data transmitted through customer-configured messaging workflows. Respond.io acts as a processor by enabling its customers to send, receive, and manage messages, assign conversations to users, automate interactions via workflows, and access logs or reports. Processing operations also include user authentication, metadata tagging, API-based data exchange, and support-related diagnostics.

Purpose(s) of the data transfer and further processing

The purpose of the data transfer and further processing is to enable Respond.io to provide its business messaging platform services to the customer. This includes facilitating real-time communication between the customer and its end users across supported messaging channels, managing and routing messages, maintaining conversation history, enforcing workflow logic, and ensuring secure and reliable platform access. All processing is carried out solely to fulfill the customer's instructions and in support of their communication workflows.

The period for which the personal data will be retained, or, if that is not possible, the criteria used to determine that period

Personal data is retained for the duration of the customer's subscription and in accordance with the customer's configuration and instructions. Respond.io deletes personal data when the customer deletes it through the platform or via API. Upon termination of the contract, remaining personal data is deleted or returned, unless retention is required by applicable law. Customers may define retention periods, and Respond.io does not retain customer or end-user data beyond what is necessary to provide the service.

For transfers to (sub-) processors, also specify subject matter, nature and duration of the processing

Transfers to sub-processors are limited to what is necessary to support the provision, maintenance, and security of the Respond.io platform. The subject matter of the processing includes infrastructure hosting, message delivery, error monitoring, usage analytics (where applicable), and customer support operations. The nature of the processing involves storage, transmission, logging, diagnostics, and access for technical support or maintenance purposes. The duration of the processing aligns with the duration of the customer's subscription, and access by sub-processors is strictly limited to what is required to perform their contracted services. All sub-processors are bound by written agreements that meet the requirements of Article 28 GDPR.

C. COMPETENT SUPERVISORY AUTHORITY

Identify the competent supervisory authority/ies in accordance with Clause 13

N/A

Annex B - Purposes, Data Categories, Data Subjects

Purpose of Processing	Data Categories	Categories of Data Subjects
1. Identifying and reaching out to potential customers who match our ideal customer profile	Company name, company website, company size, work email address, phone number, IP address, browser type, browser settings, operating system, last page visited, access timestamp, access status, amount of data transferred	Prospective Customers
2. Account registration and onboarding	Same as above	Prospective and New Customers
3. Mapping inbound messages to correct customer accounts (for routing and context)	IP address, browser type, browser settings, operating system, last page visited, access timestamp, access status, amount of data transferred	Customer (End users) and Customer of Our Customers
4. Delivering messages between our customers and their users or clients	First name, last name, email address, phone number	Customer (End users) and Customer of Our Customers
5. Executing automated workflows defined by the customer (e.g. routing, tagging, responses)	Same data as in items 3 and 4, depending on the customer's workflow configuration	Customer (End users) and Customer of Our Customers
6. Automating responses, classifying messages, and extract intent using AI tools such as AI Agent and AI Assist	Message content, timestamps, channel and sender information, limited conversation history	Customer (End users) and Customer of Our Customers
7. Generating reports and insights on platform usage, team activity, and workflow results	Conversation metadata (timestamps, sender/receiver ID, channel), message counts, agent assignment, resolution time, tag usage, workflow execution status	Customer (End users)

Annex C – Technical and Organizational Measures

Technical and organizational measures

1. Confidentiality (Art. 32 subs. 1 b) GDPR)

- Physical access control

No unauthorized access to data processing systems, e.g. magnetic cards or chip cards, electronic tokens, keys, electric door openers, plant security force resp. gatekeepers, alarm systems, video control systems.

Measures:

Access to office and data center environments is restricted to authorized personnel. Entry is secured by electronic access systems and monitored through physical or electronic surveillance in sensitive areas.

- Logical access control

No unauthorized use of systems, e.g.: (secure) codes and passwords, automatic blocking systems, two-factor authentication, encryption of data carriers.

Measures:

Access to systems is protected by multi-factor authentication and individual user credentials. Password policies enforce complexity and expiration standards.

- Data access control

No unauthorized reading, copying, alteration or removal within the systems, e.g. authorization concepts and data access authorization according to the actual needs, documentation of data accesses by logs.

Measures:

Access to customer data is governed by a documented access policy based on least privilege. All access is logged, monitored, and subject to approval workflows for elevated permissions.

- Data separation control

Separate processing of data that was collected for different purposes, e.g. multi-tenancy systems, sand boxing.

Measures:

Customer data is logically segregated within the system architecture. Processing environments (e.g., production, staging, test) are isolated by design to prevent data crossover.

- Pseudonymisation (Art. 32 subs. 1 a) GDPR; Art. 25 subs. 1 GDPR)

Personal data is processed in the way that, in default of additional information being consulted, the data can no longer be allocated to a specific subject data provided that such additional information is kept separately and appropriate technical and organizational measures are taken to protect it.

Measures:

Pseudonymisation is applied where technically and operationally feasible, particularly within analytics workflows. Linking keys are stored in separate systems under access control.

2. Integrity (Art. 32 subs. 1 b) GDPR)

- Data transfer control

No unauthorized reading, copying, alteration or removal during electronic transmission or transport, e.g. encryption, Virtual Private Networks (VPN), electronic signature.

Measures:

All data transmitted externally is encrypted in transit using industry-standard protocols (e.g. TLS 1.2 or higher). Internal administrative access is secured via VPN or equivalent safeguards. Unencrypted transfers are blocked.

- Data entry control

It can be ascertained whether and by whom personal data has been entered, altered or removed, e.g. logging, documents management.

Measures:

System activity (including data creation, modification, and deletion) is logged.
Administrative interfaces are access-controlled and monitored.

3. Availability and resilience (Art. 32 subs. 1 b) GDPR)

- Availability control

Protection against accidental or wilful destruction or loss, e.g. back-up strategy (online/offline; on-site/ off-site), uninterruptible power supply (UPS), antivirus protection, firewall, report chains and emergency plans.

Measures:

Data and systems are protected through daily backups stored in multi-zones. Infrastructure providers ensure redundancy across power, network, and hardware. Security measures include firewalls, endpoint protection, and continuous system monitoring. Business continuity and disaster recovery processes are documented, tested, and updated regularly.

- Quick restoration of availability (Art. 32 subs. 1 c) GDPR);

Measures:

Systems are designed for high availability with automated failover for critical components. Recovery objectives (RTO, RPO) are defined and monitored. Deployment infrastructure supports rapid redeployment of services. Incident management and on-call staffing enable 24/7 service restoration.

4. Processes for regular testing, assessment and evaluation (Art. 32 subs. 1 d) GDPR; Art. 25 subs. 1 GDPR)

- Data protection management;
- Incident Response Management;

- Implementation of presets which enable effective data protection (Art. 25 subs. 2 GDPR);
- Contract execution control

No contract data processing on behalf within the meaning of Art. 28 GDPR without appropriate instructions by the Controller, e.g. unambiguously drafted contracts, formalized contract management, strict selection of the service provider, duty to check proper execution in advance, subsequent controls.

The Processor regularly tests and evaluates the effectiveness of technical and organizational measures through audits, security reviews, and internal risk assessments. Security controls are updated in response to findings and emerging threats.

A documented incident response plan exists and includes escalation paths, notification procedures, containment actions, and post-incident reviews. Staff are trained on incident handling.

Systems are configured with privacy-preserving defaults (e.g., data minimization, access limits). These configurations are enforced during deployment and monitored for compliance.

Processing is performed only on documented instructions from the Controller. Service providers are vetted, bound by data protection agreements, and subject to due diligence reviews.

Annex D - Assigned sub-processors

For a current list of the sub-processors we use, please see the following <https://respond.io/subprocessors>.